

here as well. In the case of Microsoft Windows, before installing the software, Microsoft makes it mandatory for users to sign and accept its EULA (End User License Agreement), which isn't a sales receipt but a legal document that speaks about how you're entitled to a single license of Windows, and the ownership of Windows' code is still owned by Microsoft. Therefore, legally, 'sale' and 'licensing' are two completely different concepts, even though they may sound extremely similar to the common, ill-advice programmer.

So who owns the code?

If you are to be contracted to write code for another company or entity there are a few things you need to consider. Basically, the Author (person who wrote the code) owns the copyright the moment he/she actually writes the program. This ownership changes under three conditions

1. When the author is an employee
 2. When the author "assigns" the copyright over to the client
 3. When the work is defined as a "Work made for hire"
1. If you are an employee then the scope of employment comes into the picture. A lot of facts need to be looked at as to what role was the author employed to do and whether the work performed lies within that scope or was done otherwise. Needless to say, the employer is the owner in this case and there is very little that the author can do if a case is to be filed over ownership of the code.
 2. Assignment is basically legalese for giving away copyright to the client. Under the Indian Copyright Act., the time period if not mentioned is set to five years after which the copyright becomes that of the author. Also, the copyright is transferred only in India if the territorial extent is not mentioned so the author can still re-sell or license the code outside India while the agreement is in effect.
 3. If the work is defined as Work Made for Hire then the company that hired becomes the owner of the copyright of the code. If the code is derivative of some other project the hiree authored previously then that original software can be used by the hiree to create a similar software which the hirer would have no rights over unless a software patent regarding the current expression of the work was filed. Also, if the hirer has paid the hiree in



Before writing even a single line of code, sign an agreement

full then and only then does the hirer own the copyright. If the work was not completed nor was the payment transferred the ownership is retained by the author.

An agreement is a must!

Whatever be the case, with all the amount of legal surfing we've done, the outcome of any legal battle comes down to the interpretation of the clauses present in the agreement signed between both parties. Moreover, the issue becomes much more complicated if the two parties are from two different countries. If you hire a consultant through an online platform then they come into the picture as well and often help in the resolution of the conflict before it can go to court but nevertheless, do not underestimate the importance of a well written agreement over the assignment of copyright.

Here are a few references to help you out:

Who owns software created by contractors?

<http://dgit.in/1veupM2>

Beware copyright pitfalls!

<http://dgit.in/1veuwr8>

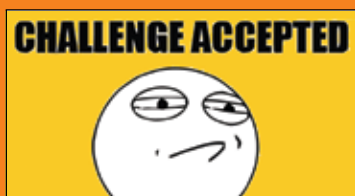
If you don't know who owns your code, it is probably not you

<http://dgit.in/1vEDjzZ>

A brief guide to software ownership for coders

<http://dgit.in/YU8FrB>

*coding matters



Daily Programmer

>>>Love challenges? Especially the ones that require you to code? Reddit has a cool sub-reddit that incorporates challenges for every day of the week and has various difficulty levels on each day.

<http://dgit.in/ChallengingCode>



Learn D the right way

>>>Fans of object oriented programming with imperative, multi-paradigm should definitely try out D and the best way to start is by learning it from the ground up. Head here to know it all:

<http://dgit.in/DTutorials>



Get started with SDL2

>>>Running into trouble related to Simple Directmedia Layer 2.0 or SDL2 when coding using most languages? Well you need to refer sample codes to get an understanding of how it works.

http://dgit.in/SDL2_Samples